

(See, *Brousseau, supra*, 73 Cal.App.3d at 872.) Therefore, Plaintiff's punitive damages claim is not sufficiently stated.

The motion to strike is granted with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first, because the claim for punitive damages is not sufficiently stated.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than 5:00 p.m. on July 16, 2026.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601298	HAGER vs ADJUSTFIRST, INC.	DEMURRER ON COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

Demurrer to Entire Complaint on Ground of Misjoinder (Code Civ. Proc., § 430.41(d))

Misjoinder of parties may be challenged by a special demurrer, pursuant to Code of Civil Procedure section 430.10, subdivision (d), which provides in relevant part: "The party against whom a complaint ... has been filed may object, by demurrer ... to the pleading on ... the following grounds: ...[¶]... (d) There is a defect or misjoinder of parties." (Code Civ. Proc., § 430.10(d).) Demurrer on the ground of misjoinder lies if the defect appears on the face of the complaint or matters judicially noticed. (*Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 198, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2002) ¶¶7:78-7:83.2.) "Although the code seems to authorize the sustaining of a demurrer solely on such a technical objection [of misjoinder], the authorities indicate that the defendant is entitled to a favorable ruling only when he can show some prejudice suffered or some interests affected by the misjoinder. [Citation.]" (*Ibid.*) Here, Sevilla claims that the Complaint is subject to a demurrer based on misjoinder because there are no allegations in the Complaint to impose any individual liability against him. However, the sufficiency of each cause of action should be examined individually as to whether a claim has been stated, not based on a general observation that Plaintiff's failure to state sufficient facts justifies a challenge as to the entire pleading based on misjoinder. **Defendant's demurrer to the entire Complaint based on the ground of misjoinder is overruled.**

Demurrer to Entire Complaint on Ground of Uncertainty

"[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citation.]" (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) "Even

as against a special demurrer, a plaintiff is required only to 'set forth in his or her complaint the essential facts of the case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his or her cause of action.'[Citation.]" (*County of Santa Clara v. Superior Court* (2009) 171 Cal.App.4th 119, 126.) Where a demurrer is made upon ground of uncertainties, it must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears. (See *Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809.)

Defendant Sevilla has correctly pointed out the Complaint is uncertain. The pleading is uncertain to the extent Sevilla (who has been named individually) cannot reasonably respond as the Complaint refers to Sevilla and Reconstruction collectively as "Construction Defendants" and does not distinctly state what actions or omissions by Sevilla in his individual capacity caused Plaintiff's injuries. Notably, Defendant Sevilla argues the breach of contract claim fails as to him because the Complaint does not allege Sevilla personally signed or otherwise became bound individually. As Defendant argues, "Directors and officers are not personally liable on contracts signed by them for and on behalf of the corporation unless they purport to bind themselves individually." (*United States Lib. Ins. Co. v. Haidinger-Hayes, Inc.* (1970) 1 Cal.3d 586, 595.) A corporate officer cannot be held personally liability absent allegations that he or she entered into a contract with plaintiff on his or her own behalf or purported to be bound personally. (See *Fraces T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 469, fn. 20.) Personal liability under contract is determined by looking at the terms of the agreement irrespective of whether the signor signs a contract referencing his corporate officer status. (*Sebastian Int'l, Inc. v. Peck* (1987) 195 Cal.app.3d 803, 809.) Here, the Complaint is uncertain as to whether Sevilla may be personally held contractually liable to Plaintiff as the Complaint neither includes a copy of the Construction Contract nor states its essential terms verbatim.

As to Plaintiff's tort claims, it is unclear what allegations supply the basis for imposing personal liability against Sevilla. As the Supreme Court in *Fraces T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490 noted, "[t]he legal fiction of the corporation as an independent entity – and the special benefit of limited liability permitted thereby – and the special benefit of limited liability permitted thereby – is intended to insulate stockholders from personal liability for corporate acts and to insulate officers from liability for corporate contracts." Notably, however, the court recognized that "the corporate fiction, ... was never intended to insulate officers from liability for their own tortious conduct." (*Id.* at 466.) But, even if a corporate officer may be held liable for his own tortious actions, here, no facts are alleged to state a cause of action against Sevilla individually. Ordinarily, the complaint is sufficient if it alleges ultimate rather than evidentiary facts, and the plaintiff is required only to set forth the essential facts of the case with "reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) However, Plaintiff has not alleged the minimal level of facts to distinguish between Sevilla's liability as a corporate officer of Reconstruction

and as an individual. **As such the demurrer on the ground of uncertainty is sustained with leave to amend.**

The demurrer is sustained with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first, because the Complaint is uncertain.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than 5:00 p.m. on July 16, 2026.